



File No.: EXP202205448

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by QUALITY-PROVIDER S.A., with NIF A87407243 (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated 28/08/2023, and based on the following

FACTS

FIRST: On 28/08/2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202205448, by virtue of which QUALITY-PROVIDER S.A. was imposed two fines of €10,000 (ten thousand euros) each for infringement of Articles 6.1 and 17 of the GDPR, classified under Articles 83.5.a) and 83.5.b) of the GDPR.

This resolution, which was notified to the appellant on 29/08/2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00517/2022, the following was recorded:

FIRST. On 20/04/2022, a written complaint was received by the AEPD from the complainant; the reasons for the complaint are that they were contacted by telephone by the real estate office "Tecnocasa" in the locality of ***LOCALIDAD.1, transferring their data: name, surname, phone number, address, and ownership of the property without having communicated them or expressly authorized any third party to transfer them; upon inquiring how they obtained that data, they confirmed that it was through INGLOBALLY (the respondent); the complainant requested the respondent to know what personal data they held and the cancellation of the same, to which the response was that they must send a copy of their ID to proceed with the cancellation.

SECOND. The complainant provided emails dated 20/04/2022 exchanged with support@inglobally.com:

"Good morning:

From Tecnocasa of ***LOCALIDAD.1, they indicate to me that they obtained my phone number, as well as my contact address through your platform.

I would like to confirm if this information is correct. If it is true, I request the immediate deletion of this data from your platform, which I have not expressly authorized to have and much less, to transfer to third parties.

On the other hand, if the transfer of my data to this company is true, I will consider taking legal action for the transfer of my data and the damages caused as a result of such transfer.

(...)"

In a response email, support@inglobally.com stated:

"Hello, from Inglobally we acknowledge receipt of your request for cancellation of the personal data held in our file and to process it, we inform you of the following:

To exercise your right of cancellation, and as this is a personal right, as provided in Article 23 of the Organic Law on the Protection of Personal Data, together with the request, you must prove the identity of the requester by providing a scanned copy of the front of your ID or a document digitally signed by you, since as the law states, the exercise of these rights is of a personal nature, in accordance with the provisions of the Articles of the current Regulation of the Organic Law on the Protection of Personal Data that I present to you below.

As soon as you send me your ID or digitally signed document, we will proceed to your removal from the file and subsequently, we will inform you that this has been done properly.

You can do this through this same channel by sending me an email."

The complainant:

"Please, prior to sending this documentation on my part, I request that you send me the document of

express transfer of my data to your platform where the corporate name is indicated and my authorization for the maintenance of my data and transfer to third parties. If you do not have it, you would be committing an illegality and, therefore, it is not appropriate for me to send any type of document or request for cancellation or rectification of my data, as it is not legal for you to have them. In this second case, I will initiate the legal actions provided for under the LOPD.

I await your response. If I do not receive a response to this email, I will assume that we are facing the second option regarding the authorization for the transfer of my data.”

In a response email from support@inglobaly.com:

“Hello,

As we indicated in the previous email, to exercise your rights of access, rectification, cancellation, and opposition (ARCO Rights), you must send us the ID or digitally signed document that proves your identity, since these rights are personal in nature and can only be exercised by the affected party.”

The complainant:

“I proceed to notify the Spanish Agency for Data Protection of the refusal to send the document of express transfer signed by me.”

THIRD. The company EVA, in response to the request from the acting Inspector by means of a letter dated 15/03/2023, has provided an invoice (...), dated 27/12/2022, corresponding to the information services contracted with the respondent that prove the relationship maintained with it.

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It is noted that regarding the claimant's data acquired from the respondent, the full name and phone number were obtained.

And that “This entity made a call to the subject in question in March 2022. This individual, in April 2022, called this entity requesting the cancellation of their data, which was immediately addressed in order to respond to their request and provide personal attention to it, proceeding immediately to the deletion of their data in response to the request received and in compliance with the aforementioned legislation in this document.”

FOURTH. In response to the information request made by the acting Inspector dated 12/05/2022, in which the following was asked:

- Complete list of the data they have on the affected party
 - Origin of each of the data, detailing the consent or legal authorization they have to carry out treatments, as well as the date on which they were collected
 - Details of the transfers or communications of data to third parties, indicating for each transfer the date it was made, the consent of the data subject, or the legal authorization.
 - Details of the data transfers made to TECNOCASA in ***LOCALITY.1 of the personal data of the claimant, providing:
 - Date on which the data was communicated to TECNOCASA
 - Contract, invoice, or documentation that allows for the verification of the commercial agreement for the transfer of the claimant's data
 - Set of data communicated to TECNOCASA
 - Information provided to the data subject that supports the aforementioned data communication
 - Consent or legal authorization of the affected party for the transfer of their data to TECNOCASA,
- the respondent on 18/05/2022 claimed the inadequacy of the procedure initiated by the Agency for the processing of this file and its incompetence to handle the matter and regarding the requested information that “this party is unable to provide information related to this file since the claimant does not provide a photocopy of the national identity document for the purpose of being able to identify them, which prevents this party from knowing and reliably identifying which natural or legal person it concerns and, therefore, prevents knowing which data is involved” and requested the Agency to “verify and identify the claimant, requesting this Agency to require the submission of a photocopy of their

national identity document, forwarding it to this party in order to know and verify the identity of the person interested in the file.”

It also claimed that the position of the Director of the AEPD had expired as the term of 5 years for which they were appointed had elapsed.

FIFTH. On 07/06/2022, due to the lack of response provided by the respondent, the request was reiterated, and the response from the respondent on 16/06/2022 was that they had already responded to the request on 18/05/2022, attaching the proof of registration of that response, requesting that the present request be considered answered.

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SIXTH. On 17/08/2022, due to the lack of response to the requested information, the request was reiterated with the warning that “the data controller and the data processor have the obligation to provide the documents, information, and any other collaboration necessary to carry out the inspection function.

Failure to comply with this obligation could result in the commission of the infringement classified in art. 72.1.ñ) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.”

The response from the respondent on 24/08/2022 was identical to that provided in the first request.

SEVENTH. In a document dated 03/03/2023, the respondent requests the AEPD to require the claimant to provide a photocopy of their ID, and to forward it to them “in order to know and verify the identity of the person interested in the above-referenced file, as this party has certain doubts about the identity of the claimant.”

EIGHTH. On 15/02/2023, the entity EVA was requested to respond to the following questions:

- Corporate name and CIF
- Documentation justifying the purchase or transfer of data to INGLOBALY and/or QUALITY PROVIDER.
- Copy of the data acquired from the claimant.
- Treatments carried out with said data
- Calls made to the claimant.

NINTH. EVA responded on 15/03/2023 stating that: “This entity made a call to the subject in question in March 2022. This individual, in April 2022, called this entity requesting the cancellation of their data, which was immediately addressed in order to respond to their request and provide personal attention to it, proceeding immediately to the deletion of their data in response to the request received and in compliance with the aforementioned legislation in this document.”

And provided an invoice for the information services contracted with the respondent.

TENTH. On 26/04/2023, the respondent submitted new documents reiterating the allegations and arguments made previously.

ELEVENTH. In a new document dated 08/06/2023, the respondent essentially reproduces what has already been argued and alleged in previous documents.

THIRD: The appealing party submitted on 06/09/2023, to this Spanish Agency for Data Protection, a request for reconsideration, fundamentally based on allegations already made throughout the procedure and, in addition, the appellant insists on reaffirming all the statements made not only in this file but in all those that have been initiated at the AEPD; that we are facing an unusual fact that borders on illegality in relation to the aforementioned.

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files and that a new file is being invented; that all that has been stated has not been disproved by the AEPD, requesting the filing not only of the resolution but of all those sanctions that have been resolved due to the Director lacking an authorized signature.

LEGAL GROUNDS

I

As a preliminary matter, it should be noted that the new document submitted by the appellant has not been classified as a motion for reconsideration. However, paragraph 2 of Article 115 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), establishes that the error or absence of classification of the appeal by the appellant shall not be an obstacle to its processing, provided that its true nature is inferred, so the submitted document will be processed as a motion for reconsideration.

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Regarding the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in the Legal Grounds II to X of the contested Resolution, as transcribed below:

“II

First of all, reference must be made to the formal exceptions raised by the respondent before addressing the substantive issues.

- First, regarding the allegation related to Directive (EU) 2019/1937, it should be noted that Article 1 of the same states that its purpose is to strengthen the application of Union law and policies in specific areas by establishing common minimum standards that provide a high level of protection for individuals who report violations of Union law, with the personal scope of application being set out in its Article 4, which is limited to whistleblowers working in the private or public sector who have obtained information about violations in a work context. Furthermore, Article 17 states that any processing of personal data carried out under this Directive, including the exchange or transmission of personal data by competent authorities, shall be carried out in accordance with Regulation (EU) 2016/679 and Directive (EU) 2016/680.

Thus, the main objective of this Directive is to protect those who report violations or irregularities in a company through a specific channel without fear of retaliation.

For its part, the first paragraph of Article 1 of the GDPR proclaims that the Regulation establishes rules regarding the protection of individuals with regard to the processing of personal data and the rules regarding the free movement of such data. It adds in its second paragraph that it protects the rights and fundamental freedoms of individuals and, in particular, their right to the protection of personal data.

Regarding the material scope of application of the GDPR, it is limited to what is prescribed in its Article 2, where it specifies in its first paragraph that it applies to the total or partial automated processing of personal data, as well as to the non-automated processing of personal data contained in or intended to be included in a filing system.

Moreover, Article 51.1 of the GDPR stipulates that each Member State shall provide that one or more independent public authorities (hereinafter "supervisory authority") shall be responsible for monitoring the application of this Regulation, in order to protect the rights and fundamental freedoms of individuals with regard to processing and to facilitate the free movement of personal data within the Union, developing the functions of each supervisory authority in its Article 57.

For its part, the LOPDGDD in its Article 47 establishes the functions and powers of the Spanish Agency for Data Protection, among which is to supervise the application of the GDPR and in its Title VIII regulates the procedures in case of possible violations of data protection regulations.

Therefore, Directive (EU) 2019/1337, contrary to what the respondent claims, does not modify the GDPR nor does it render the LOPDGDD obsolete, with the respondent suffering from an excess of normative voluntarism, but rather it is a norm with a clearly distinct purpose and scope of application from that of the GDPR and, therefore, from the LOPDGDD. Thus, the claim made by QUALITY regarding the inadequacy of the procedure initiated by the Spanish Agency for Data Protection for the processing of the present file is completely unfounded.

- The respondent alleges the incompetence of the AEPD to process the present matter; it should be noted that Article 47 of the LOPDGDD establishes that:

“It is the responsibility of the Spanish Agency for Data Protection to supervise the application of this organic law and of Regulation (EU) 2016/679 and, in particular, to exercise the functions established in Article 57 and the powers provided for in Article 58 of the same regulation, in this organic law and in its implementing provisions.

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Furthermore, it is the responsibility of the Spanish Agency for the Protection of Data to perform the functions and powers attributed to it by other laws or regulations of European Union law.”

- The respondent claims that it lacks personal data of the complainant, accusing the AEPD of a lack of legal rigor and absence of transparency. In this regard, it is noted that the alleged infringements that initiate this sanctioning procedure are related to the lawfulness of the processing of the complainant's data by the respondent, both infringements being the cause of the agreement to initiate the sanctioning procedure. The processing is evidenced by the statements made not only by the complainant but also by the company EVA. Furthermore, the respondent's activity of processing personal data has already been established in firm resolutions of this Agency, such as in the sanctioning procedure EXP202103457.

- The respondent alleges that there is no obstruction to the inspection work of this Agency due to Royal Decree 389/2021, of June 1, which abolishes the Data Inspection; it forgets that, although the Data Inspection as a governing body is abolished, in its place, the General Subdirectorate of Data Inspection is the equivalent body in the organizational structure of this Agency, with its competencies and functions defined in Article 27 of that Royal Decree, and therefore, this Subdirectorate maintains its competencies as set forth in that article.

Moreover, as already noted, the facts referred to by the respondent are not the subject of the present procedure and are being pursued in PS/00204/2023.

- The respondent claims that the Director is not authorized to address the present issue as her mandate has expired and there is alleged usurpation of a public position.

It suffices to remind the respondent of what was stated by the National Court in its Judgment of 09/12/2022:

“Firstly, it alleges the absolute nullity of the contested resolution under Article 47.1 of Law 39/2015, of October 1, due to the manifest incompetence of the person signing it, as her mandate has expired, having completed 4 years since the date of her appointment, and also because the condition under which it was issued was nonexistent at the time it was adopted, in accordance with the provisions of the sole additional provision of Royal Decree 389/2021, which approves the Statute of the Spanish Agency for the Protection of Data.

To this end, it states that according to Article 14.3 of the applicable 1993 Agency Statute, the mandate of the Director of the Data Protection Agency shall last four years from the date of appointment and shall only cease for the reasons provided for in Article 15 of that Statute. It indicates that, in this regard, the 1993 Statute differs from that approved by Royal Decree 389/2021, of June 1, whose Article 12.3 does provide that the outgoing President shall continue in office until the new President takes office, but since it does not provide for any transitional provisions in this regard, just as it does not...”

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It was provided in the LOPDGDD regarding the performance of the functions of the position of Director of the AEPD until the new appointment of the new President of the same, the term of the Director, whose appointment was made on July 24, 2015 (published in the BOE on July 25, 2015), expired on July 24, 2019, upon the completion of four years since their appointment.

And having occurred the cessation of their functions as Director of the AEPD, they lacked the competence to issue the agreement to initiate the file on which the appealed resolution of October 7, 2020, fell, and the own contested resolution cites the judgments of June 16, 2017, issued in Rec. 1585/2016 and Rex. 1655/2016, and June 20, 2017 (Rec. 2463/2016).

Furthermore, it is argued that according to the provisions established in the sole additional provision of Royal Decree 389/2021, which approves the Statute of the Spanish Agency for Data Protection, the governing body Director of the AEPD is abolished, so, in their understanding, and in the absence of a transitional provision that provides for the maintenance of said position, all administrative acts issued by the Director of the AEPD would incur, additionally, in a defect of legality that derives from the non-existence of the body that issued them.

For its part, the State Attorney argues that neither the LOPD of 1999 nor the LOPDGDD contemplate an automatic termination of the mandate, such that when the term of the mandate for which the Director was appointed is fulfilled, they cease to have any competence, but rather a Royal Decree of cessation is necessary, without being able to abandon the position of their own will if there has not been a Royal Decree of cessation from the Government.

That this is so is demonstrated not only by the fact that none of the Directors of the AEPD has ceased in their position merely due to the passage of time, requiring a Royal Decree for cessation, but also that in no case has there been an "abandonment" of the position by its holder upon reaching the fourth anniversary of the appointment. In fact, abandonment of service was considered a crime until the Penal Code of 1995, which decriminalized such conduct in most cases; however, it constitutes an administrative infraction (very serious disciplinary offense), art. 95.2 of the consolidated text of the Basic Statute of Public Employees approved by Legislative Royal Decree of October 30, or art. 6.c) of the Disciplinary Regime Regulation of Civil Service Officials, approved by RD 33/1986, of January 10. It adds that, in any case, there is the general principle of law of conservation in the appointment of the position, so that, in the new Statute of the AEPD, to avoid these speculations, it is expressly established that the person holding the Presidency will continue in functions until the taking of possession of the new holder of the Presidency.

Finally, it argues that the judgments cited by the appellant are not applicable to the present case, in which regarding the Director of the AEPD, the legislator neither establishes the automatic expiration of the appointment, nor has it been understood as such by the Government, nor does it foresee the need for an express agreement for extension or the calling of a competition, for the appointment, upon reaching the term for which it was appointed, to continue in its effects.

Having presented the positions of the parties, we must start from art. 53, section 3, of the RGPD, as it indicates that the members of the supervisory authority "shall cease their functions in the event of termination of the mandate, resignation or mandatory retirement, in accordance with the law of the Member State concerned."

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In the internal sphere, Article 36.1 of Organic Law 15/1999, of December 13 (LOPD), which is the applicable regulation at the time of the appointment of the Director of the AEPD, establishes that the Director of the AEPD shall be appointed by Royal Decree for a period of four years. Paragraph 3 of the same provision states that before the expiration of this term, the Director of the AEPD may only be

dismissed at their own request or by separation agreed upon by the Government due to serious breach of their obligations, unforeseen incapacity to perform their duties, incompatibility, or conviction for a willful crime.

That is to say, once the term of four years has elapsed, the Government may dismiss the Director without the need for cause, but this does not imply that when this term is fulfilled, their position automatically ceases to be effective and to have any functions or competences, as this is not expressly stated in the aforementioned LOPD, nor in Organic Law 3/2018, of December 5 (LOPDCDD), in its Article 48 regarding the Presidency of the AEPD.

This has been understood and practiced by all Governments that proceed to expressly dismiss the Directors of the AEPD by Royal Decree, even when their term of appointment has expired, without their positions ceasing to be effective and in function until their respective dismissals and the concurrent appointments of their successors in office, to avoid gaps in the institution.

This is in accordance with the principles of responsibility and continuity of institutions, to prevent the institution from becoming inoperative when a new appointment has not been made.

The legislator could have expressly established the automatic provision for the expiration of the position, that is, that the effectiveness in the position ceases at the very moment the term is fulfilled, but this has not been done either in the LOPD or in the current LOPDGDD, nor in Royal Decree 389/2021, of June 1, 2021, which approves the new Statute of the AEPD, which precisely in Article 12.3 establishes that "the person holding the outgoing Presidency shall continue in office until the new person holding the Presidency takes possession," without establishing any limitations regarding the exercise of their functions or competences during the period in office, which was also not established in the previous regulations.

Therefore, since no limitations have been established on the actions of the Director of the AEPD in office, unlike what occurs, for example, in Article 21.2 of Law 50/1997, of November 27, on the Government, which establishes that the Government "continues in office until the new Government takes possession, with the limitations established in this Law," the Director of the AEPD holds the competence to issue the contested resolution, as well as the agreement to initiate the sanctioning procedure.

In this context, it cannot be deemed that the condition under which the Director of the AEPD issued the contested act is nonexistent.

On the other hand, the doctrine established by the Supreme Court in the aforementioned rulings pertains to a case that bears no similarity to the case at hand, and therefore is not applicable here. Indeed, these rulings deal with Decree 123/1997, of May 13, which approves the General Regulation of Job Positions and Professional Promotion of the officials of the Administration of the Government of Catalonia, and refer to a provisional coverage of the position, through the figure of the assignment of functions, due to the existence of urgency. An autonomous decree that specifically provides that such appointment shall automatically become ineffective if a competition for the provision of the position has not been called within a period of 6 months.

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work and furthermore, that said official will not be able to continue in the exercise of their functions, a situation that is different from that provided for the Director of the AEPD, since the previous Statute did not mention this eventuality and the current one expressly provides for the extension of their functions. The reason, consequently, must be dismissed."

- The respondent alleges that in the procedure initiated, the Agency bypasses the rules regarding the duration of the period for resolution, which is six months.

The agreement to initiate the present procedure, in the penultimate paragraph, already stated that the procedure will have a maximum duration of nine months from the date of the initiation agreement or, if applicable, from the draft initiation agreement.

Article 64, Form of initiation of the procedure and duration, of the LOPDGDD establishes that:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law. In this case, the period for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim accepted.

2. When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 and this organic law, it will be initiated by an initiation agreement adopted on its own initiative or as a result of a claim.

If the procedure is based on a claim made before the Spanish Data Protection Agency, prior to this, it will decide on its admission to processing, in accordance with the provisions of Article 65 of this organic law.

When the rules established in Article 60 of Regulation (EU) 2016/679 are applicable, the procedure will be initiated by adopting the draft agreement to initiate sanctioning proceedings, of which formal notice will be given to the interested party for the purposes provided in Article 75 of this organic law.

Once the claim is admitted for processing, as well as in cases where the Spanish Data Protection Agency acts on its own initiative, prior to the initiation agreement, there may be a phase of preliminary investigative actions, which will be governed by the provisions of Article 67 of this organic law.

The procedure will have a maximum duration of nine months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file of actions will take place.

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3. The procedure may also be processed as a result of the communication to the Spanish Agency for Data Protection by the supervisory authority of another Member State of the European Union regarding the complaint filed with it, when the Spanish Agency for Data Protection has the status of the main supervisory authority for the processing of a procedure in accordance with the provisions of Articles 56 and 60 of Regulation (EU) 2016/679. In this case, the provisions of paragraph 1 and the first, third, fourth, and fifth paragraphs of paragraph 2 shall apply.

4. The processing deadlines established in this article, as well as those for admission to processing regulated by Article 65.5 and the duration of the preliminary investigation proceedings provided for in Article 67.2, shall be automatically suspended when information, consultation, request for assistance, or mandatory pronouncement from an organ or body of the European Union or one or more supervisory authorities of the Member States must be obtained in accordance with the provisions of Regulation (EU) 2016/679, for the time that elapses between the request and the notification of the pronouncement to the Spanish Agency for Data Protection.

However, the respondent is informed that following the reform carried out by paragraph four of the final provision nine of Law 11/2023, of May 8, transposing European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitization of notarial and registry actions; and which modifies Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials ("B.O.E." May 9), Article 64 of the LOPDGDD has been amended.

- Finally, regarding the respondent's assertion that the resolution has been communicated outside the time limit permitted by law, it is noted that, on April 17, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate the present sanctioning procedure, where it was informed that the procedure will have a maximum duration of nine months from the date of said Agreement, in accordance with the provisions of Article 64 of the LOPDGDD. Therefore, a resolution has not yet been issued, and the time limit that prevails under the principle of normative specialty is that indicated in the aforementioned initiation Agreement.

III

The reported facts materialize in the illegitimate processing of the complainant's data, considering that the obtaining of the same has been carried out illegally, which could violate the regulations on the protection of personal data.

Article 58 of the GDPR, Powers, states:

"2. Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time;

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)"

IV

Article 6, Lawfulness of processing, of the GDPR in its paragraph 1, establishes that:

"1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;

d) processing is necessary to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

"1) 'personal data': any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

"2) 'processing': any operation or set of operations performed on personal data or on sets of personal data, whether or not by automated means;

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automated or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, suppression or destruction;

"11) 'consent of the data subject': any expression of free, specific, informed, and unequivocal will by which the data subject accepts, either through a statement or a clear affirmative action, the processing of personal data concerning them."

V

The infringement of Article 6.1 of the GDPR attributed to the defendant is classified under Article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9” is subject to penalties, in accordance with paragraph 5 of the aforementioned Article 83 of the Regulation, “with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount.” The LOPDGDD in its Article 71, Infringements, states that: “Acts and conducts referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (UE) 2016/679, as well as those contrary to this organic law, constitute infringements.”

And in its Article 72, it considers for the purposes of prescription that: “Infringements considered very serious:

1. According to what is established in Article 83.5 of Regulation (UE) 2016/679, the following are considered very serious and shall prescribe in three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the conditions for lawfulness of processing established in Article 6 of Regulation (UE) 2016/679 being met.

(...)”

VI

1. It should be noted that the processing of data requires the existence of a legal basis that legitimizes it.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of the data subject, particularly when it is necessary for the performance of a contract in which the data subject is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject requiring the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the data subject or another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

In the present case, the defendant has not demonstrated any legal basis provided for in Article 6.1 of the GDPR for the processing of the personal data of the claimant.

2. The defendant has not demonstrated the origin of the claimant's data, although in their letter dated 27/04/2023, they stated that “the displayed data are basic data, obtained from Public Registers legally and consent is not required from the affected party.”

In relation to this issue, it should be noted that the concept of “publicly accessible sources,” contrary to what was stated in the former LOPD, does not appear in the current GDPR as a legitimizing basis, thus the need to demonstrate a legitimizing basis in accordance with Article 6.1 of the GDPR applies in any case.

If it is considered that the data have been legitimately obtained from a

third party, not from the data subject themselves, the defendant should have communicated the acquisition of the data to the claimant, either at the time they were obtained or when they were used for commercial purposes, or at the time the personal data were communicated for the first time, and in any case within a maximum period of one month, in accordance with Article 14 of the GDPR.

In this regard, it should be indicated that, in any case, the defendant should have communicated the acquisition of the data to the claimant, either at the time they were obtained or when they were used for commercial purposes.

As a result, the defendant has violated Article 6 of the GDPR, in accordance with the legal basis II, as it is understood that we are facing an unlawful processing of data.

3. It is established in the proven facts that the company EVA has provided an invoice (...), dated 27/12/2022, corresponding to the information services contracted with the defendant, which proves the commercial relationship maintained with them.

It has also stated that the claimant's data acquired from the defendant corresponds to their full name and phone number.

EVA made a call to the claimant in March 2022, and the claimant, in April, contacted the entity requesting the cancellation of their data, which was immediately attended to in order to respond to their request and in compliance with the legislation contained in this document.

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However, the response from the respondent to the requested information, in which it was asked:

“Complete list of the data they have regarding the affected party

Origin of each of the data, detailing the consent or legal basis they have to carry out processing, as well as the date on which they were collected

Details of the transfers or communications of data to third parties, indicating for each transfer, the date it was made, the consent of the data subject or the legal basis.

Details of the data transfers made to TECNOCASA in ***LOCALITY of the personal data of the complainant, providing:

- Date on which the data was communicated to TECNOCASA
- Contract, invoice, or documentation that allows for the verification of the commercial agreement for the transfer of the complainant's data
- Set of data communicated to TECNOCASA
- Information provided to the data subject that supports the aforementioned data communication
- Consent or legal basis of the affected party for the transfer of their data to TECNOCASA,” (the underlined portions correspond to the AEPD)

was the inadequacy of the procedure initiated by the Agency and its incompetence to process the matter, and it was unable to provide information related to this file because the complainant did not provide a photocopy of the national identity document to identify them and, moreover, to make matters worse, it requested the Agency to require the complainant to provide the DNI, so that this agency could send it to identify the complainant; a request that is quite paradoxical.

However, as noted at the beginning of this number, not only did it not have the complainant's data, but it also had no qualms about doing business with the company EVA, as evidenced by the issued invoice, using their data.

This behavior evidences the violation of Article 6.1 of the GDPR, as it lacked any legitimacy for the processing of the complainant's data, an infringement that is classified under Article 83.5.a) of the

GDPR.

VII

Secondly, the exercise of the right to erasure is regulated in Article 17 of the GDPR, which establishes:

“1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replicas of the same.

3. Paragraphs 1 and 2 shall not apply to the extent that the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims.”

VIII

The violation of Article 17 of the GDPR is classified under Article 83.5.b) of the aforementioned GDPR in the following terms:

“5. Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR, or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

(...)

- b) the rights of the data subjects under Articles 12 to 22;

(...)”

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On its part, the LOPDGDD in its article 71, Infractions, states that:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infractions.”

And in its article 72, for the purposes of prescription, it qualifies as “Infractions considered very serious”:

"1. In accordance with what is established in article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and will prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

k) The hindrance or obstruction or the repeated failure to attend to the exercise of the rights established in articles 15 to 22 of Regulation (EU) 2016/679.

(...)"

IX

1. In relation to the aforementioned right to erasure of data, Recital 59 of the GDPR states that:

"59. Arrangements should be made to facilitate the data subject's exercise of their rights under this Regulation, including mechanisms to request and, where appropriate, obtain free of charge, in particular, access to personal data and its rectification or erasure, as well as the exercise of the right to object. The data controller must also provide means for requests to be made electronically, particularly where personal data are processed by electronic means. The data controller shall be obliged to respond to the data subject's requests without undue delay and at the latest within one month, and to explain their reasons in the event that they do not comply."

And Recital 66 of the GDPR states that:

"66. In order to strengthen the 'right to be forgotten' in the online environment, the right to erasure should be extended in such a way that the data controller who has made personal data public is obliged to inform the controllers who are processing such personal data to erase all links to them, or copies or replications of such data. In doing so, the data controller must take reasonable steps, taking into account the technology and means at their disposal, including technical measures, to inform the request of the data subject to those controllers who are processing the personal data."

In this case, the claimant has requested the erasure of their personal data from the respondent, and in response to this request, the respondent requested a copy of the ID from the claimant to proceed with the erasure.

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On this particular matter, it should be noted that the Guidelines 01/2022 on the rights of data subjects — Right of access Version 1.0 adopted on 18/01/2022, state regarding the identification of the requesting person, that the data controller must respond to requests from data subjects exercising their individual rights, unless it can demonstrate, through justification in accordance with the principle of proactive responsibility (Article 5.2), that it is unable to identify the data subject (Article 11).

And in particular regarding the assessment of proportionality in relation to the identification of the requester, the aforementioned Guidelines provide the following:

"69 As previously indicated, if the data controller has reasonable doubts about the identity of the requesting person, it may request additional information to confirm the identity of the data subject. However, the data controller must ensure at the same time that it does not collect more personal data than necessary to allow the identification of the requesting person. Therefore, the data controller will carry out a proportionality assessment, which must take into account the type of personal data being processed (for example, special categories of data or not), the nature of the request, the context in which the request is made, as well as any harm that may result from an improper disclosure. When assessing proportionality, it should be remembered to avoid excessive data collection while ensuring an adequate level of security in processing.

70. The data controller must apply an authentication procedure (verification of the identity of the data subject) to be sure of the identity of the individuals requesting access to their data²⁸, and ensure the security of processing throughout the entire process of handling an access request in accordance with Article 32, including, for example, a secure channel for data subjects to provide additional information. The method used for authentication must be relevant, appropriate, proportionate, and respect the principle of data minimization. If the data controller imposes burdensome measures aimed at

identifying the data subject, it must adequately justify this and ensure compliance with all fundamental principles, including data minimization and the obligation to facilitate the exercise of the rights of data subjects (Article 12, paragraph 2, of the GDPR). (...)

73. It is important to emphasize that the use of a copy of an identity document as part of the authentication process creates a risk to the security of personal data and may lead to unauthorized or unlawful processing, and therefore should be considered inadequate, unless it is strictly necessary, appropriate, and in accordance with national law. In such cases, data controllers must have systems in place that ensure an adequate level of security to mitigate the greater risks to the rights and freedoms of the data subject when receiving such data. It is also important to note that identification using an identity document does not necessarily assist in the online context (for example, with the use of pseudonyms) if the data subject cannot provide any other information.

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evidence, for example, other characteristics that match the user account.”

The respondent has not demonstrated the proportionality of their request, which could be excessive and hinder the exercise of the right to erasure. This is so because no greater formalities can be required for the exercise of rights than those followed to obtain such data.

2. The documentation in the file provides clear indications that the respondent violated Article 17 of the GDPR, the right to erasure, as it was not addressed despite the claimant exercising their right.

The claimant has stated that in response to the exercise of their right, the respondent's reply was that they should send a copy of their ID. The respondent has indicated that they were unable to provide the information required by the Agency since the claimant had not provided a photocopy of their ID for the purpose of being able to identify them, which made it impossible to know which natural or legal person was involved and, therefore, which data was concerned. Furthermore, they requested the Agency to require the claimant to provide their ID.

Data protection regulations allow you to exercise your rights of access, rectification, opposition, erasure, limitation of processing, portability, and not to be subject to individualized decisions before the data controller.

In accordance with the established regulations, it should be noted that a copy of the ID cannot be required for the exercise of your request when obtaining data from public records, that is, from publicly accessible sources, as stated by the respondent, identity was not verified either.

This is so because no greater formalities can be required for the exercise of rights than those followed to obtain such data.

Therefore, Article 17 of the GDPR would have been violated in accordance with the aforementioned, an infringement classified in Article 83.5.b) of the GDPR.

X

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

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2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h)

and j). When deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The link of the infringer's activity with the carrying out of personal data processing.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.

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- h) The voluntary submission by the responsible party or the person in charge to alternative dispute resolution mechanisms, in those cases where there are disputes between them and any interested party."

- In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case for the infringement classified in Article 83.5.a) and Article 6.1 of the GDPR for which the respondent is held responsible, the following factors are initially considered:

As aggravating circumstances:

The nature and severity of the infringement; the facts revealed affect a basic principle related to the processing of personal data, such as legitimacy, which the regulation penalizes with the utmost severity. The personal data of the complainant has been processed by the respondent, without it being indicated that they are or have been a client of the entity or that they maintain any type of relationship with it (Article 83.2.a) of the GDPR).

The intentionality or negligence in the infringement. The facts revealed demonstrate that the

respondent did not act with the diligence required of them, refusing to provide information regarding the personal data and the cancellation thereof at the request of the complainant, as well as refusing to cooperate with the actions carried out by the Inspection Service.

The activity of the allegedly infringing entity is linked to the processing of personal data. Also connected with the degree of diligence that the data controller is obliged to exercise in compliance with the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the GDPR came into force, its ruling is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that "(...). The Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

- In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case for the infringement classified in Article 83.5.b) and Article 17 of the GDPR for which the respondent is held responsible, the following factors are initially considered:

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As aggravating circumstances:

The nature and severity of the infringement; it should not be forgotten that we are dealing with the infringement of a right of the interested party, the right to erasure, which has not been addressed by the entity; on the other hand, the regulation itself punishes with the utmost severity the absence and lack of attention to these types of rights that are considered key in the data protection regulations (Article 83.2.a) of the GDPR).

The intentionality or negligence in the infringement. The facts revealed demonstrate that the respondent did not act with the diligence to which it was obliged, refusing to provide information about personal data and to cooperate with the inspection carried out by the Inspection Service of the AEPD. The activity of the allegedly infringing entity is linked to the processing of personal data. In the activity of the complained entity, the processing of personal data of clients and third parties is essential, so the significance of the conduct subject to this complaint is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

III

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Having seen the cited provisions and others of general application,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by QUALITY-PROVIDER S.A., with NIF A87407243, against the resolution of this Spanish Agency for Data Protection issued on 28/08/2023, in file EXP202205448.

SECOND: NOTIFY this resolution to QUALITY-PROVIDER S.A.

THIRD: Warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, it will proceed to its collection in the executive

period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection

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